Residential repair agreement.

Power Edge, LLC d/b/a PowerEdge · 469-277-9594 · contact@poweredgetx.com

OWNER NAME(S) | PHONE | EMAIL

PROPERTY ADDRESS | DATE OF THIS AGREEMENT

1. WORK

PowerEdge will furnish the labor and materials described below at the property above.

SCOPE OF WORK	PRICE
Total contract price	

Where the work is paid from an insurance claim, the scope and price are those approved by the Owner's carrier, plus any upgrades the Owner selects in writing, and the figures above are an estimate until the carrier issues its scope of loss.

2. PAYMENT

No deposit is due at signing. The Owner pays (a) the applicable insurance deductible, and (b) any amount above what the carrier approves that the Owner has agreed to in writing. On a claim, PowerEdge is paid from claim proceeds as the carrier releases them. On a non-claim job, payment is due on substantial completion unless a written schedule says otherwise. PowerEdge finances deductibles and project balances in house at 0% interest with no finance charge, on terms set out in a separate written payment agreement.

3. DEDUCTIBLE

TEXAS LAW REQUIRES A PERSON INSURED UNDER A PROPERTY INSURANCE POLICY TO PAY ANY DEDUCTIBLE APPLICABLE TO A CLAIM MADE UNDER THE POLICY. IT IS A VIOLATION OF TEXAS LAW FOR A SELLER OF GOODS OR SERVICES WHO REASONABLY EXPECTS TO BE PAID WHOLLY OR PARTLY FROM THE PROCEEDS OF A PROPERTY INSURANCE CLAIM TO KNOWINGLY ALLOW THE INSURED PERSON TO FAIL TO PAY, OR ASSIST THE INSURED PERSON'S FAILURE TO PAY, THE APPLICABLE INSURANCE DEDUCTIBLE.

4. INSURANCE CLAIMS: WHAT POWEREDGE DOES AND DOES NOT DO

PowerEdge is a contractor, not a public insurance adjuster. Consistent with Texas Insurance Code § 4102.163, PowerEdge will not file the Owner's claim, negotiate or adjust it, or advise the Owner on policy coverage. PowerEdge will document conditions, prepare its own estimate, and discuss that estimate and its technical findings with the carrier or its adjuster. Coverage decisions rest solely with the Owner and the carrier.

5. CHANGES AND SUPPLEMENTS

Any change to the scope or price must be in writing and signed by both parties before that work is performed. Where additional damage is found after work begins, or a carrier issues a supplement, PowerEdge will document it and present a written change order; the Owner is not obligated to accept it.

6. SCHEDULE

Work begins on a date the parties agree once materials and, on a claim, the carrier's scope are in hand. Dates are estimates. Neither party is liable for delay caused by weather, material shortages, carrier timelines, permitting, or other causes outside its reasonable control.

7. WARRANTY

PowerEdge warrants its workmanship for one year from substantial completion and will correct covered defects at no charge. Manufacturer warranties on materials pass to the Owner on the manufacturer's own terms. The warranty does not cover damage from later storms, alterations by others, neglect, or failure of structures or components PowerEdge did not install. This is the only warranty given; the Owner's statutory rights are unaffected.

8. POWEREDGE'S OBLIGATIONS

PowerEdge carries commercial general liability coverage of $2,000,000 and will provide a certificate on request; obtains permits its work requires; removes its debris and runs a magnet over the work area; and will walk the completed work with the Owner. Texas does not license roofing contractors, and PowerEdge makes no claim to a roofing license.

9. OWNER'S OBLIGATIONS

The Owner will provide access to the property and to electrical service, move or protect vehicles and belongings in the work area, and disclose known conditions such as solar equipment, satellite mounts, or prior repairs. PowerEdge is not responsible for damage to undisclosed items or to driveways, walkways and landscaping from normal use of equipment with reasonable care.

10. IF THE CLAIM IS DENIED OR THE OWNER CANCELS LATER

If the carrier denies the claim, this agreement may be terminated by either party in writing, and the Owner owes nothing for work not yet performed. If the Owner cancels after the cancellation period below and after work or special-order materials have begun, the Owner is responsible only for work actually performed and materials actually ordered, documented at cost. PowerEdge charges no cancellation fee or lost-profit penalty.

11. GENERAL

This agreement and any signed change orders are the entire agreement, and supersede anything said beforehand. No PowerEdge representative has authority to promise anything not written here, including any promise about a deductible or a claim outcome. Texas law governs, venue lies in the county where the property sits, and the parties will attempt to resolve any dispute in good faith before filing. If a provision is unenforceable the rest stands. The Owner may not assign this agreement without written consent.

YOU, THE BUYER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE OF THIS TRANSACTION. SEE THE ATTACHED NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT.

OWNER SIGNATURE _____ OWNER SIGNATURE _____ DATE _____

POWEREDGE REPRESENTATIVE (PRINT AND SIGN) _____ DATE _____

DETACH AND GIVE BOTH COPIES BELOW TO THE OWNER

NOTICE OF CANCELLATION (COPY 1 OF 2, OWNER'S COPY)

Date of transaction: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN THREE BUSINESS DAYS FROM THE ABOVE DATE.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN 10 BUSINESS DAYS FOLLOWING RECEIPT BY THE SELLER OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL BE CANCELLED.

IF YOU CANCEL, YOU MUST MAKE AVAILABLE TO THE SELLER AT YOUR RESIDENCE, IN SUBSTANTIALLY AS GOOD CONDITION AS WHEN RECEIVED, ANY GOODS DELIVERED TO YOU UNDER THIS CONTRACT OR SALE; OR YOU MAY, IF YOU WISH, COMPLY WITH THE INSTRUCTIONS OF THE SELLER REGARDING THE RETURN SHIPMENT OF THE GOODS AT THE SELLER'S EXPENSE AND RISK.

TO CANCEL THIS TRANSACTION, MAIL OR DELIVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN NOTICE, TO **POWER EDGE, LLC** AT **PO BOX 600715, DALLAS, TX 75206**, OR BY EMAIL TO **CONTACT@POWEREDGETX.COM**, NOT LATER THAN MIDNIGHT OF _____.

I HEREBY CANCEL THIS TRANSACTION.

Date: _____ Signature: _____

NOTICE OF CANCELLATION (COPY 2 OF 2, OWNER RETURNS THIS COPY TO CANCEL)

Date of transaction: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN THREE BUSINESS DAYS FROM THE ABOVE DATE.

TO CANCEL THIS TRANSACTION, MAIL OR DELIVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN NOTICE, TO **POWER EDGE, LLC** AT **PO BOX 600715, DALLAS, TX 75206**, OR BY EMAIL TO **CONTACT@POWEREDGETX.COM**, NOT LATER THAN MIDNIGHT OF _____.

I HEREBY CANCEL THIS TRANSACTION.

Date: _____ Signature: _____